



POLICE DEPARTMENT

March 5, 2024

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-27573
Sergeant Michael Farrell	:	
Tax Registry No. 948952	:	
Warrants Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Deanna Everett-Johnson, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Matthew Schieffer, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Sergeant Michael Farrell, on or about August 25, 2021, at approximately 0212 hours, while assigned to the Warrants Section and on duty, in the vicinity of Sutter Avenue and Powell Street, Kings County, abused his authority as a member of the New York City Police Department, in that he authorized a strip search of § 87(2)(b) without sufficient legal authority. (*As amended*)

P.G. 208-05, Page 3, Paragraph C(1)

ARRESTS – GENERAL
SEARCH GUIDELINES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 1, 2024. Respondent, through his counsel, entered a plea of Not Guilty. The CCRB called complainant § 87(2)(b). Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

This case stems from a strip search of the complainant, § 87(2)(b) that was conducted inside of the 73 precinct on August 25, 2021 at the Respondent's behest. Here, there is no dispute that Respondent authorized the strip search, and that § 87(2)(b) was, in fact, strip searched by another uniformed member of service. The issue in this case is whether Respondent authorized the strip search of § 87(2)(b) without sufficient legal authority. Having reviewed all the evidence presented at trial, this Tribunal finds, for the reasons set forth below, that CCRB did not meet its burden of demonstrating by a preponderance of the credible evidence that Respondent's actions constitute actionable misconduct.

§ 87(2)(b) testified that on August 25, 2021 at approximately 1:57 a.m., he was on the sidewalk at Sutter Avenue and Powell Street locking his “bike”¹ and having a conversation with his friend, § 87(2)(b) § 87(2)(b) recalled officers in an unmarked police vehicle pulling up onto the sidewalk where he and § 87(2)(b) were speaking. He recalled two to three officers exiting the unmarked police vehicle and approaching them on the sidewalk. According to § 87(2)(b) testimony, one of the officers approached and started asking questions about his motorcycle, suggesting it was stolen because they were getting complaints about stolen bikes in the area. (Tr. 25-26, 30-31) § 87(2)(b) informed the officer that he had identification and documents to show that he was the legal owner of the motorcycle. He further testified that when attempting to walk away from the officers to retrieve the paperwork, one of the officers grabbed him. (Tr. 32-33) § 87(2)(b) described his physical encounter with police as follows: “they tussled me down to the ground, and I think more guys came. It was about eight of them at this time. They came with mask [sic], and they slammed me down to the ground and put their knee on my back. They had their knee in my neck like this sideways, and their knees on my back, in my upper back and my lower back.” (Tr. 33)

§ 87(2)(b) acknowledged at trial that the officers recovered a firearm inside his undergarments and subsequently took him to the 73 precinct to be processed. § 87(2)(b) claimed that he was verbally “tormented” by the officers who were processing his arrest when he asked for medical attention prior to being striped searched at the precinct. (Tr. 34) He later clarified that the officers he was referring to were Officer Fowler and his partner, Officer Kerr. (Tr. 37)²

¹ § 87(2)(b) referred to his motorcycle as a “bike” at the hearing, but in his CCRB interview (CCRB Ex. 9A) he clarified that it was a “49CC Dongfang” motorcycle.

² It is worth noting that Officer Fowler’s body-worn camera footage captures the interactions had between the officers and § 87(2)(b) on the way to the precinct. (CCRB Ex. 3 at 3:37-5:40) On the footage, § 87(2)(b) asks the officers, what he did wrong and the officers respond that he had a gun on him. § 87(2)(b) then spontaneously stated that he “just picked it up at a baby shower in East New York” and that “it (the gun) was in the grass in a bag.” (*Id.* at 3:40) There

At trial, § 87(2)(b) was asked where he was prior to being stopped by police on the street. He claimed that he was “at the park working out” when he observed a bag with a firearm inside on the ground near the area where he was doing inclines. (Tr. 42) § 87(2)(b) testified that he picked up the firearm to avoid any children finding it. He further stated that his intention was either “to take it and get money for it” or give it to relatives in the police department who “know what to do or dispose of it.” When asked why he did not advise the officers that stopped him on the street that he had a firearm, he responded: “Because I would have got killed.” (Tr. 43)

§ 87(2)(b) testified that he was searched at least twice (once at the scene and once at the precinct in front of the desk sergeant) before the strip search was conducted. (Tr. 39) His testimony on this issue was corroborated by Officer Aquino’s BWC footage (CCRB Ex. 5) and Officer Fowler’s BWC. (CCRB Ex. 3) § 87(2)(b) stated that when he was searched in front of the desk sergeant (Respondent) at the precinct, the officers recovered approximately eight-hundred dollars (\$800) on him, which he received from “unemployment pay.” He also stated that he had “a Rolex watch, chains, it's just-- I have vehicles. It's just what I have. I work.” (Tr. 44) While at the desk, § 87(2)(b) was asked by Respondent if he needed medical attention and he responded in the affirmative, stating that he “thinks he has Covid.” (CCRB Ex. 3 at 13:52)

Respondent authorized the strip search and § 87(2)(b) was escorted by Officers Fowler and Kerr to a different area of the precinct. According to § 87(2)(b) the officers conducting the strip search ordered him to “go in a cell and open my butt cheeks and spread them and bend over and cough.” He added that this search made him feel “less than a man.” (Tr. 44-46; CCRB Ex. 4)

was no evidence of § 87(2)(b) being “bullied” or “tormented” during his interactions with police prior to his arrival at the precinct. § 87(2)(b) also does not mention on BWC finding the gun at a park while working out as he testified in court.

After the strip search, as per § 87(2)(b) testimony, he was taken to § 87(2)(b) Hospital where he learned that he had “broken ribs, collapsed lung and a broken pneumothorax.” (Tr. 45) He subsequently commenced a lawsuit against the City of New York. § 87(2)(b) testified that as of the date of this trial, the lawsuit was resolved by a settlement.

Respondent’s testimony regarding the facts of what occurred on the date in question are substantially similar to § 87(2)(b) version of events. Most significantly, he confirmed authorizing the strip search of § 87(2)(b). The main difference lies in Respondent’s perception of § 87(2)(b) actions on August 25, 2021 which, coupled with his prior experience and training, led him to conclude that a strip search was appropriate under the circumstances.

Respondent testified that he began his career with the Department, 14 years ago, as an officer in the 81 precinct. He then “worked his way up to Specialty Units, became a plainclothes anticrime officer, then was transferred to narcotics where he became a detective, then was promoted to sergeant when he went to Brownsville.” (Tr. 50) At the time of this incident, he was working in his capacity as a public safety sergeant.

When asked to describe the location in Brooklyn where this incident occurred, Respondent testified that there is a housing development with a shopping center across the street known to be a “high narcotic prone location.” He also added that “the housing development had some gang violence with some shootings in the past.” (Tr. 51) While on patrol in that area, Respondent testified that he observed an individual (later identified as § 87(2)(b)) sitting on a motorcycle on a sidewalk. At the time, the motorcycle was on the sidewalk and Respondent testified that he could not see whether or not it had a license plate properly affixed to it.³ Based

³ It was later confirmed by Respondent that § 87(2)(b) motorcycle did not have a license plate affixed to it.

upon this perceived vehicle and traffic infraction, Respondent testified that he and his partner, Sergeant Hui, decided to further investigate. (Tr. 64-65)

Respondent testified that he approached § 87(2)(b) and requested identification. He also informed § 87(2)(b) about the precinct condition regarding stolen bikes. § 87(2)(b) claimed ownership of the motorcycle and he asked to go get his ID. According to Respondent, that is when § 87(2)(b) attempted to run. (Tr. 53) Respondent testified that he and his partner managed to grab ahold of § 87(2)(b) wrist and took him down to the ground with minimal force.

While on the ground, Respondent recalled that § 87(2)(b) refused to give his hands and was reaching towards his waistband and undergarment area. Once they were able to get § 87(2)(b) in custody and bring him to his feet, they tried to pat him down. According to Respondent, § 87(2)(b) was turning his body away from him, but facing Sergeant Hui and another officer. That is when, according to Respondent, “they said they observed the firearm, at which point they had to turn out his pants, turn out the undergarment, to retrieve the firearm. And Officer Kerr put on a glove to retrieve the firearm.” (Tr. 54-55) Respondent testified that § 87(2)(b) was searched again before being placed into the RMP and transported to the precinct.

At the precinct, Respondent testified that he “assumed the role of desk officer for the lodging” of § 87(2)(b) because it was his team that effected the arrest. § 87(2)(b) was brought before Respondent to provide his pedigree information and have his property vouchered. At that time, Respondent observed that § 87(2)(b) had a large amount of money in small denominations. Respondent also recalled asking § 87(2)(b) whether he needed medical attention because he began complaining that he was feeling unwell. § 87(2)(b) indicated that he did need medical attention and Respondent “authorized” Officer Fowler to go to the back cells to perform a strip search (Tr. 56-58)

Respondent was asked why he authorized a strip search in this particular instance and he replied:

The strip search, I authorized it in this incident because of the stop when he was violently resisting arrest, I felt like he was reaching towards his waistband. The firearm was recovered inside shorts in his undergarment. A large amount of money, in my experience with working as a narcotics detective in that area, it could mean that there's narcotics. It could mean that there's another weapon. Ultimately, for the safety of everyone that's involved, I thought it was -- since he's going to the hospital, if something was to happen, you know, I'd rather make the decision to do the proper conductive search, so nobody else gets hurt. (Tr. 60)

On cross examination, Respondent was questioned about the number of times § 87(2)(b) was searched before being strip searched and whether any contraband was found (aside from the firearm recovered at the initial search). Respondent replied that § 87(2)(b) was "patted down" on scene before he was transported in the RMP and then he was checked again at the desk. (Tr. 72) Respondent also testified that he did not have any prior knowledge of § 87(2)(b) prior to this incident, that he was cooperative once he was in custody, and that as far as he was aware, § 87(2)(b) had not made a furtive movements to indicate the presence of other contraband on his person. However, Respondent reiterated that "the actions on the scene are what led me to authorize the strip search." (Tr. 77)

FINDINGS AND ANALYSIS

The issue in this case is whether Respondent authorized the strip search of § 87(2)(b) without sufficient legal authority. NYPD Patrol Guide section 208-05 defines a strip search as:

Any search in which an individual's undergarments (e.g., bra, underwear, etc.) and/or private areas are exposed or in which an individual's clothing is removed, lifted up, or pulled down to expose undergarments or private areas. A strip search of a prisoner may not be conducted routinely in connection with an arrest. Strip searches may only be conducted with the knowledge and approval of the arresting officer's immediate supervisor or the borough Court Section supervisor. A strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods.

The Patrol Guide also lists factors that a supervisor should consider in determining whether a strip search should be authorized, including: “the nature of the crime (i.e., serious violent felony); arrest circumstances; subject's reputation (i.e., extremely violent person), acts of violence, unaccounted "hits" on magnetometers or walk-through metal detectors, and any discoveries or information from previous searches of the same individual or others arrested with him/her.”

Here, there is no dispute that Respondent authorized the strip search of § 87(2)(b). While there are credibility issues connected with § 87(2)(b) based on dubious statements he made about what he was doing before being stopped and how he came to be in possession of the firearm and money that was recovered on his person; those credibility concerns have little bearing on the ultimate issue in this case, which centers on whether Respondent had a sufficient basis, in accordance with the law and Patrol Guide, for authorizing the strip search. The Court finds that based upon the credible evidence adduced at trial, that Respondent had a reasonable basis to authorize the strip search and as such, his decision does not constitute misconduct.

In assessing whether Respondent acted reasonably in authorizing the strip search, the focus is on what information Respondent possessed at the time he made his decision. Unlike in circumstances where the supervisor of the arresting officer must determine if a strip search should be conducted based upon facts conveyed by the arresting officer, here, the Respondent relied on his own observations and personal experience to make this assessment. Respondent was detailed and consistent in his testimony, answered questions logically and the Court credits his account of what happened that day.

According to Respondent, he observed § 87(2)(b) sitting on motorcycle parked on a sidewalk (a violation of the Vehicle and Traffic Law) late at night, in a high crime, drug-prone

location. § 87(2)(b) attempt to flee the police shortly after they questioned him about his ownership of the motorcycle. These facts coupled with his “violently resisting arrest” and “reaching towards his waistband,” heightened Respondent’s suspicion. (Tr. 60) A subsequent search of § 87(2)(b) at the scene yielded a firearm concealed in his undergarments. Once at the precinct, Respondent observed that § 87(2)(b) was in possession of a large amount of money in small denominations. This observation further fueled Respondent’s suspicion that § 87(2)(b) may be concealing other contraband not discovered during a routine “pat-down.” Finally, when § 87(2)(b) requested medical attention, Respondent determined that a number of safety issues legally justified a strip search. In making that decision, Respondent stated:

Well, if you're going to a hospital, you need to be searched thoroughly. You're also escorted to the hospital by usually a junior officer, so they're not experienced in what to look for. The hospital is also -- when they're in a bed, the doctor need[s] to treat them, and we have one cuff on them. It's very easy for them to discard evidence. I've had numerous incidents in the past where perps have tried to discreet [sic] stuff in the hospital, you know. (Tr. 58-59)

CCRB contends that Respondent’s approval of a strip search did not meet the legal threshold for authorization because he did not have reasonable suspicion to believe that § 87(2)(b) was concealing contraband. According to the CCRB, the fact that a firearm was recovered from § 87(2)(b) and the fact that he had approximately \$800 in cash was an insufficient basis for authorizing a strip search. In summation, CCRB relied on the case of *People v. Hall*, 10 N.Y.3d 303, a 2008 decision in which the NY Court of Appeals determined that “there must be particular, individualized facts known to the police that justify subjecting an arrestee to a strip search.” Moreover, in the *Hall* case, the search was deemed constitutionally valid because “the particular facts, viewed objectively and in their totality, provided the police with reasonable suspicion that defendant had drugs secreted underneath his clothing and possibly in his body.”

Id. at 312. This Tribunal finds that applying the same standard to this case, Respondent provided sufficient specific and articulable facts to support his authorization of the strip search.

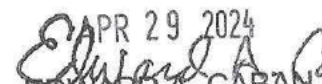
Having carefully reviewed the evidence presented at trial and taking into account the entirety of the information known to Respondent at the time he authorized the strip search, this Tribunal finds Respondent's actions reasonable and lawful. Viewing the particular facts expressed by Respondent objectively and in their totality, in conjunction with the guidance articulated in the Patrol Guide, there is ample support for Respondent's decision. The evidence suggests that in reaching his decision to authorize the strip search, Respondent relied on his own experience and specialized training in narcotics to make informed inferences about the personal observations he made regarding § 87(2)(b) on the night in question. He also gave thoughtful consideration to the fact that § 87(2)(b) would be receiving medical attention at a hospital and a thorough search of his person was necessary to ensure everyone's safety. Accordingly, based upon the foregoing, Respondent is found Not Guilty.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

APR 29 2024

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

February 29, 2024

Re: Sergeant Michael Farrell
Disciplinary Case No. 2022-27573

Dear Commissioner Caban:

The above-referenced case was tried on February 1, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Sergeant Michael Farrell, was charged with the following:

1. Sergeant Michael Farrell, on or about August 25, 2021, at approximately 0212 hours, while assigned to the Warrants Section and on duty, in the vicinity of Sutter Avenue and Powell Street, Kings County, abused his authority as a member of the New York City Police Department, in that he authorized a strip search of § 87(2)(b) without sufficient legal authority. (*As amended*)
P.G. 208-05, Page 3, Paragraph C(1) ARRESTS – GENERAL, SEARCH GUIDELINES

CCRB has reviewed the February 22, 2024, draft decision of Assistant Deputy Commissioner - Trials Vanessa Facio-Lince (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Farrell not guilty of the sole specification. It is respectfully requested that you reject ADCT Facio-Lince’s findings, find the Respondent guilty of the Charge and Specification and accept CCRB’s recommended presumptive penalty of 20 suspension days plays dismissal probation in this matter

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB EXHIBITS

1. Sgt. Hui’s BWC footage Axon_Body_3_Video_2021-08-25_0154.mp4
2. Sgt. Farrell’s BWC footage Axon_Body_3_Video_2021-08-25_0155.mp4

3. PO Fowler's BWC footage (1 of 2) Axon_Body_3_Video_2021-08-25_0157- PO FOWLER.mp4
4. PO Fowler's BWC footage (2 of 2) Axon_Body_3_Video_2021-08-25_0213- PO FOWLER.mp4
5. PO Aquino's BWC footage Axon_Body_3_Video_2021-08-25_0158- PO AQUINO.mp4
6. Sgt. Farrell CCRB Interview, April 6, 2022
 - 6a. Sgt. Farrell CCRB Interview, transcript.
7. Sgt. Hui CCRB Interview, June 16, 2022
 - 7a. Sgt. Hui CCRB Interview, transcript.
8. PO Fowler CCRB Interview, March 31, 2022
 - 8a. PO Fowler CCRB Interview, transcript.
9. § 87(2)(b) CCRB Interview, September 4, 2021
 - 9a. § 87(2)(b) CCRB Interview, transcript.
10. Sgt. Farrell IAB Intake Call, September 8, 2021
 - 10a. Sgt. Farrell IAB, Transcript
11. § 87(2)(b) Medical Records from § 87(2)(b) Medical Center
12. Photos of § 87(2)(b) at § 87(2)(b) Medical Center (a,b,c)
13. TRI Report, August 25, 2021
14. NYCHA CCTV – Sutter and Powell Avenues 202105227_20210923_1417_DMI.MP4
15. § 87(2)(b) CCRB Interview, January 5, 2022.
 - 15a. § 87(2)(b) CCRB Interview, Transcript

Respondent's Exhibits

None

Testimony

Sergeant Michael Farrell-

Respondent testified that he began his career with the Department, 14 years ago, as an officer in the 81st precinct. He then “worked his way up to Specialty Units, became a plainclothes anticrime officer, then was transferred to narcotics where he became a detective, then was promoted to sergeant when he went to Brownsville.” (Tr. 50) At the time of this incident, he was working in his capacity as a public safety sergeant. When asked to describe the location in Brooklyn where this incident occurred, Respondent testified that there is a housing development with a shopping center across the street known to be a “high narcotic prone location.” He also added that “the housing development had some gang violence with some shootings in the past.” (Tr. 51) While on patrol in that area, Respondent testified that he observed an individual (later identified as § 87(2)(b) sitting on a

motorcycle on a sidewalk. At the time, the motorcycle was on the sidewalk and Respondent testified that he could not see whether or not it had a license plate properly affixed to it. Based upon this perceived vehicle and traffic infraction, Respondent testified that he and his partner, Sergeant Hui, decided to further investigate. (Tr. 64-65)

Respondent testified that he approached § 87(2)(b) and requested identification. He also informed § 87(2)(b) about the precinct condition regarding stolen bikes. § 87(2)(b) claimed ownership of the motorcycle and he asked to go get his ID. According to Respondent, that is when § 87(2)(b) attempted to run. (Tr. 53) Respondent testified that he and his partner managed to grab ahold of § 87(2)(b) wrist and took him down to the ground with minimal force. While on the ground, Respondent recalled that § 87(2)(b) refused to give his hands and was reaching towards his waistband and undergarment area. Once they were able to get § 87(2)(b) in custody and bring him to his feet, they tried to pat him down. According to Respondent, § 87(2)(b) was turning his body away from him, but facing Sergeant Hui and another officer. That is when, according to Respondent, “they said they observed the firearm, at which point they had to turn out his pants, turn out the undergarment, to retrieve the firearm. And Officer Kerr put on a glove to retrieve the firearm.” (Tr. 54-55) Respondent testified that § 87(2)(b) was searched again before being placed into the RMP and transported to the precinct.

At the precinct, Respondent testified that he “assumed the role of desk officer for the lodging” of § 87(2)(b) because it was his team that effected the arrest. § 87(2)(b) was brought before Respondent to provide his pedigree information and have his property vouchered. At that time, Respondent observed that § 87(2)(b) had a large amount of money in small denominations. Respondent also recalled asking § 87(2)(b) whether he needed medical attention because he began complaining that he was feeling unwell. § 87(2)(b) indicated that he did need medical attention and Respondent “authorized” Officer Fowler to go to the back cells to perform a strip search (Tr. 56-58)

Respondent was asked why he authorized a strip search in this particular instance and he replied: The strip search, I authorized it in this incident because of the stop when he was violently resisting arrest, I felt like he was reaching towards his waistband. The firearm was recovered inside shorts in his undergarment. A large amount of money, in my experience with working as a narcotics detective in that area, it could mean that there's narcotics. It could mean that there's another weapon. Ultimately, for the safety of everyone that's involved, I thought it was -- since he's going to the hospital, if something was to happen, you know, I'd rather make the decision to do the proper conductive search, so nobody else gets hurt. (Tr. 60)

On cross examination, Respondent was questioned about the number of times § 87(2)(b) was searched before being strip searched and whether any contraband was found (aside from the firearm recovered at the initial search). Respondent replied that § 87(2)(b) was “patted down” on scene before he was transported in the RMP and then he was checked again at the desk. (Tr. 72) Respondent also testified that he did not have any prior knowledge of § 87(2)(b) prior to this incident, that he was cooperative once he was in custody, and that as far as he was aware, § 87(2)(b) had not made a furtive movement to indicate the presence of other contraband on his person. However, Respondent reiterated that “the actions on the scene are what led me to authorize the strip search.” (Tr. 77)

RESPONDENT IS GUILTY OF THE CHARGES AND SPECIFICATIONS

We disagree with the Tribunal’s finding that the Respondent had a reasonable basis to authorize the strip search and as such, his decision does not constitute misconduct. (Decision 8). Black’s Law Dictionary and the caselaw defines reasonable suspicion as a particularized and objective basis, supported by specific and articulable facts. The explanation the Sergeant provided

as to why he authorized a strip search was not supported by particularized facts. The stated reasons were merely circumstantial and to find that the circumstantial facts are sufficient to authorize a strip search will lead to a very slippery slope of fourth and fourteenth amendment violations.

The caselaw is clear, People v. Hall, 10 N.Y.3d 303, stated that: "Visual cavity inspections and manual body cavity searches cannot be routinely undertaken as incident to all drug arrests or permitted under a police department's blanket policy that subjects persons suspected of certain crimes to these procedures. There must be particular, individualized facts known to the police that justify subjecting an arrestee to these procedures. People v. Cantor, 36 N.Y.2d 106 stated: the police are required to have "specific and articulable facts which, along with any logical deductions, reasonably prompt the intrusion." This means that a strip search must be founded on a reasonable suspicion and reasonable suspicion requires that an officer must be able to articulate something more than an "inchoate and unparticularized suspicion or hunch. Trzaskos v. St. Jacques, 39 F. Supp. 2d 177.

Respondent's entire basis for approaching § 87(2)(b) was because he was on the sidewalk with a motorcycle. He did not observe any criminal activity, he had no reason to believe that criminal activity was afoot, he just saw two black men, in the projects "a high crime area" conversing and he wanted to stop him. He said so in his interview. He just wanted to stop him. CCRB Ex. 6a-Pg. 8, Line 20. As for the search Respondent. did not state any specific incidents, actions or behavioral factors that led him to believe that § 87(2)(b) was concealing any evidence. His only basis were two circumstantial facts. In CCRB Exhibit 8a, Page 16, Line 16, PO Fowler acknowledged that the basis for the search was circumstantial. Respondent's testimony was that what occurred in the field was what led him to authorize the strip-search, but § 87(2)(b) had been searched, at least, three separate times, before Respondent authorized the strip-search, and there was no contraband, other than the handgun already recovered.

In conclusion, the CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on the charged Specification. Based on the presented arguments above, Respondent is Guilty of the sole Charge and Specification in the charge document and CCRB recommends the presumptive penalty of 20 suspension days plays dismissal probation in this matter.

Respectfully submitted,

Deanna Everett-Johnson
Deanna Everett-Johnson, Esq.

APU Prosecutor

NYC Civilian Complaint Review Board

cc: Matthew Schieffer, Esq.
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